

## Navi Hasan v. State of U.P.

Allahabad High Court · Division Bench · 7 May 2021 · WRIT - C No. 9527 of 2021 · **Writ disposed of; Executive Engineer directed to decide pending objections to the provisional assessment under the U.P. Electricity Supply Code, 2005; no final demand or coercive recovery until that disposal.**

### HEADNOTE

Where objections to a provisional assessment under the U.P. Electricity Supply Code, 2005 have been received and remain undecided, and no final assessment has been passed, the assessing officer must decide those statutory objections in accordance with the Code. A final demand notice or coercive proceeding cannot be initiated until the objections are disposed of. The High Court will so direct without examining the merits of the assessment.

### FACTUAL SUMMARY

Navi Hasan challenged a 21 July 2020 provisional assessment notice issued by the Executive Engineer, Electricity Distribution Division-II, Moradabad, alleging it had been treated as a final assessment without disposal of his objections dated 28 August 2020, received in the division office on 31 August 2020. Counsel for the distribution licensee admitted that those objections remained undecided, that no final assessment order had been passed, and that no coercive proceeding had been commenced. The petitioner pressed only a direction to decide the pending objections.

### HOLDING-UNITS

#### HOLDING-UNIT · UP-2005::6.8

objections to provisional assessment

#### HOLDING

Pending statutory objections to a provisional assessment under the U.P. Electricity Supply Code, 2005 must be decided by the assessing officer in accordance with the Code before a final demand notice is issued or coercive recovery is commenced; the writ court will direct that decision without examining the merits of the assessment. ¶ 1

### PRINCIPLE TAGS

#### provisional-assessment-objections-before-final-demand

On the licensee's admission that objections to the 21.7.2020 provisional assessment had been received and not decided, the Court directed the Executive Engineer, EDD-II, Moradabad to decide them under the Supply Code and barred a final demand notice or coercive proceeding until disposal. ¶ 1

### NOT DECIDED — NEGATIVE AUTHORITY

#### NOT DECIDED — VALIDITY OF THE PROVISIONAL ASSESSMENT NOTICE DATED 21.7.2020

The notice was not quashed; only a direction to decide pending objections was issued. ¶ 1

#### NOT DECIDED — MERITS OF THE CONSUMER'S OBJECTIONS DATED 28.8.2020

Left to the Executive Engineer to decide in accordance with the Supply Code. ¶ 1